

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #8	CCRB Case #: 201808644	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/16/2018 6:00 AM	Location of Incident: § 87(2)(b)	Precinct: 83	18 Mo. SOL 4/16/2020	EO SOL 12/1/2020	
Date/Time CV Reported Thu, 10/18/2018 11:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/18/2018 11:29 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			Unknown
2. SGT Forrest Hirsch	01210	941905	INT CIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM George Kurian	10678	948065	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Forrest Hirsch	Abuse: Sergeant Forrest Hirsch entered § 87(2)(b) in Brooklyn.	
B. Officers	Abuse: Officers entered § 87(2)(b) in Brooklyn.	
C.SGT Forrest Hirsch	Abuse: Sergeant Forrest Hirsch searched § 87(2)(b) in Brooklyn.	
D. Officers	Abuse: Officers searched § 87(2)(b) in Brooklyn.	

Case Summary

On October 18, 2018, § 87(2)(b) filed this complaint with the CCRB via telephone.

On October 16, 2018, at approximately 6:00 a.m., officers, supervised by Sgt. Forrest Hirsch of the Intel Criminal Section, entered and searched § 87(2)(b)'s apartment, located at § 87(2)(b), in Brooklyn (**Allegations A, B, C, and D: Abuse of Authority,**

§ 87(2)(g) Four arrests were made. § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) was not present at the time of the entry or search.

BWC footage exists from this incident. The full videos are linked to Board Reviews 01 through 10. After returning to his apartment on October 17, 2018, § 87(2)(b) recorded a video of the aftermath of the search. His video is linked to Board Review 11.

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Forrest Hirsch entered § 87(2)(b) in Brooklyn.

Allegation B – Abuse of Authority: Officers entered § 87(2)(b), in Brooklyn.

Allegation C – Abuse of Authority: Sergeant Forrest Hirsch searched § 87(2)(b), in Brooklyn.

Allegation D – Abuse of Authority: Officers searched § 87(2)(b), in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b), on October 16, 2018, at approximately 6:00 a.m. pursuant to Search Warrant number § 87(2)(b). § 87(2)(b) was interviewed at the CCRB on November 14, 2018 [BR 12]. He stated that he was not present when officers entered and searched his apartment. § 87(2)(b) was informed by his landlord, § 87(2)(b) (a.k.a. § 87(2)(b) § 87(2)(b) that police conducted the search. When § 87(2)(b) returned to his residence on October 17, 2018, he realized that there was damage to his property and to the building, including but not limited to: holes in the wall, holes in the ceiling, and damage to the toilet and shower. As noted above, § 87(2)(b) documented the damage in his video [BR 11]. § 87(2)(g)

Given the damage to the infrastructure of § 87(2)(b)'s apartment, contact attempts were extended to § 87(2)(b)'s landlord, § 87(2)(b). However, she could not be reached for a statement [BRs 13 through 25].

Based on the arrest reports generated, the CCRB determined that § 87(2)(b) and § 87(2)(b) also reside on the § 87(2)(b) [BRs 26 and 27, respectively]. Attempts were made to obtain statements from them regarding the incident; however, neither could be reached for a statement [BRs 28 through 48].

The Search Warrant Confirmation shows that Search Warrant number § 87(2)(b) was obtained for § 87(2)(b), in Brooklyn on § 87(2)(b), and was signed by the Honorable Judge § 87(2)(b) [BR 49]. Sgt. Hirsch is listed as the Supervising Officer.

As also noted above, BWC footage exists from this incident. The footage does not capture the initial entry into the residence. The first BWC is activated at 6:39 a.m. and shows two civilians already handcuffed inside the apartment.

New York Criminal Procedure Law § 690.30 states that a search warrant must be executed within ten days of its issuance and must be executed between the hours of 6:00 a.m. and 9:00 p.m., unless the warrant expressly authorizes execution thereof at any time of day or night [BR 50].

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one prior CCRB complaint and was named as a victim in one allegation [BR 51].
 - § 87(2)(b)
- § 87(2)(b) has been a party to one prior CCRB complaint and was named as a victim in six allegations [BR 52].
 - § 87(2)(b)
- § 87(2)(b) has been a party to four prior CCRB complaints and was named as a victim in four allegations [BR 53].
 - § 87(2)(b)
- § 87(2)(b) has been a party to two prior CCRB complaints and was named as a victim in eight allegations [BR 54].

- § 87(2)(b) [REDACTED]
- [REDACTED]
- Sgt. Hirsch has been a member-of-service for 12 years and has been a subject in 11 prior CCRB complaints and 29 allegations, four of which were substantiated.
 - 201016064 involved substantiated allegations of Abuse of Authority – Frisk and Abuse of Authority – Stop against Sgt. Hirsch. The Board recommended Charges and the NYPD imposed Instructions.
 - 201306080 involved substantiated allegations of Abuse of Authority – Entry of Premises and Offensive Language – Race against Sgt. Hirsch. The Board recommended Charges and the NYPD imposed a forfeiture of five vacation days for the entry. Sgt. Hirsch was found Not Guilty of the offensive language allegation. Therefore, the NYPD imposed no penalty.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim request was submitted to the New York City Office of the Comptroller on February 8, 2019, and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Squad No.: ___8___

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date